

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2025CLCL050237: WELLS FARGO BANK, N.A. vs JENNY BOLGER

09/03/2026 in Department 41

Motion for Summary Judgment

Below is the Court's tentative decision with respect to the matter on calendar. The Court may adopt, modify, or change the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

If you wish to submit on the Court's tentative decision without appearing, please send an email to the following address by 8:00 a.m. on the date of the hearing with counsel for all parties copied on your email: courtroom41@ventura.courts.ca.gov. Please state on the subject line of your email: "SUBMISSION ON TENTATIVE", Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative decision is subject to change.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the Court. A "notice of ruling" in lieu of this procedure is not authorized.

The Court intends to rule as follows:

For the purposes of this Motion only, the Court finds as follows:

1. The following undisputed material facts submitted by Plaintiff ("UMFs") are undisputed and ESTABLISHED by the cited evidence: 1, 3-7, 9, 11-15, 17-21, 23, and 25-28.
2. UMFs 2 and 16 are undisputed and NOT ESTABLISHED by the cited evidence as to the statement that Plaintiff sent Defendant the written Customer Agreement. The cited evidence only shows that Plaintiff made the Customer Agreement available to Defendant. These facts are ESTABLISHED as to the statement that Plaintiff sent Defendant the credit card.
3. UMFs 8 and 22 are NOT ESTABLISHED by the cited evidence as to "and any fees." They are ESTABLISHED as to the remainder of the statement.
4. UMFs 10 and 24 are ESTABLISHED by the cited evidence with the qualification that "There is no record of any active lawsuits against Wells Fargo Bank, N.A. for unresolved disputes on this credit card account" "of which [Brendan Hogan] is aware."

A party is entitled to summary judgment only if all the papers show no triable issue of material fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) A plaintiff moving for summary judgment bears the burden of persuasion that every element of the cause of action is proved and that no defense exists. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850-851.) The plaintiff also bears the initial burden of producing sufficient evidence to make a *prima facie* showing. This burden is unaffected by the strength of the showing in opposition to the motion. (See *Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468.) Once the moving party has met that burden, the burden shifts to the opposing party to proffer evidence showing the existence of a triable factual issue as to the cause of action. (See, e.g., *Brantley v. Pisaro* (1996) 42 Cal.App.4th 1591, 1595-1696.)

A breach of contract has the following elements: (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff. (*D'Arrigo Bros. of California v. United Farmworkers of America* (2014) 224 Cal.App.4th 790, 800.) An implied-in-fact contract is one in which the existence and terms of which are manifested by conduct. (*Chandler v. Roach* (1957) 156 Cal.App.2d 435, 439; Civ. Code, § 1621). The only distinction between an implied-in-fact contract and an express contract is that, in the former, the promise is not expressed in words but is implied from the promisor's conduct. (*Chandler, supra*, 56 Cal.App.2d at p. 440.)

Here, Plaintiff has shown that Plaintiff and Defendant Jenny Bolger entered into a written contract for the issuance of a credit card to Defendant. (UMF 1, 3, 15.) Defendant accepted the credit card and used it to purchase goods and services. (UMF 1, 3, 17.) Defendant, in exchange for use of the card, agreed to repay the principal along with interest and other charges. (UMF 4, 5, 18, 19.) On October 10, 2024, Defendant breached the agreement by failing to remit any further payments on the account. (UMF 11, 12, 25, 26.) The amount of \$13,265.28 is owing on the account. (UMF 13, 14, 27, 28.) Consequently, all the elements for the breach of written contract and implied contract have been shown with supporting evidence.

Since Plaintiff has met its burden, the burden shifts to Defendant to demonstrate a triable issue of fact as to the alleged claims. Defendant has not filed an opposition to the motion and therefore has not met her burden.

Accordingly, the Court GRANTS the motion for summary judgment.